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SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES- CENTRAL DISTRICT

BEAU DEMAYO, an individual,

Plaintiff,

vs.

MARVEL ANIMATION STUDIO, LLC, a
Delaware limited liability company; and
DOES 1 through 20, inclusive,

Defendants.

Case No. **24STCV22633**

**COMPLAINT FOR DECLARATORY
RELIEF**

**[EXPEDITED TRIAL DATE REQUEST
PURSUANT TO CAL. CIV. PROC. CODE
§ 1062.3(a)]**

1 Plaintiff Beau DeMayo, by and through his counsel, complains against Defendant Marvel
2 Animation Studio, LLC, and DOES 1-20 (collectively “Defendants”), hereby alleging as follows:

3 **INTRODUCTION**

4 1. Plaintiff Beau DeMayo (“Plaintiff” or “DeMayo”) seeks judicial relief from an illegal
5 non-disparagement provision that his former employer, Defendant Marvel Animation Studio, LLC
6 (“Marvel” or “Company”), exacted upon his exit from the Company.

7 2. DeMayo, who intends to detail his prior employment with Marvel via OnlyFans, bore
8 witness to and endured rampant discriminatory and harassing conduct during his years-long tenure
9 with the Company. Well aware that DeMayo possessed copious knowledge regarding Marvel’s
10 illicit and unsafe employment practices, the Company sought to silence DeMayo as part of his
11 forced ouster.

12 3. Backed by an army of well-versed employment attorneys, Marvel knowingly
13 incorporated an illegal non-disparagement provision designed to muzzle an openly gay Black man
14 and restrict his statutory rights. And, in fact, Marvel invoked this unenforceable provision to justify
15 its nefarious removal of DeMayo’s credits on the acclaimed series *X-Men* ‘97.

16 4. Indeed, Marvel has and continues to willfully exploit a contractual provision that
17 quite clearly runs afoul of California law. That ends now. By way of this complaint, DeMayo seeks
18 a judicial declaration that this non-disparagement provision violates public policy and is illegal
19 and/or unenforceable as a matter of law under California’s Fair Employment and Housing Act, Cal.
20 Gov’t Code §§ 12900 *et seq.*

21 **PARTIES**

22 5. Plaintiff Beau DeMayo is, and at all times relevant was, an individual residing in the
23 County of Los Angeles, State of California.

24 6. Defendant Marvel Animation Studio, LLC is, and at all times relevant was, a
25 Delaware limited liability company with its principal place of business in the County of Los
26 Angeles, State of California.

27 7. Plaintiff is ignorant of the true names and capacities of defendants sued herein as
28 DOES 1 through 20, inclusive, and thereon sues these defendants by such fictitious names. Plaintiff

1 alleges on information and belief that such DOE defendants are liable to Plaintiff for the actions
2 hereinafter set forth. Plaintiff will amend this complaint to allege the true names and capacities of
3 such DOE defendants when ascertained.

4 8. At all times relevant herein, each of the defendants was the agent, servant, employee,
5 joint-venturer, partner and/or alter ego of each of the named defendants herein and were at all times
6 operating and acting within the purpose and scope of said agency, service, employment, joint
7 venture, partnership and/or alter ego. Each defendant has rendered substantial assistance and
8 encouragement to the other defendants, acting in concert knowing that its conduct was wrongful
9 and/or unlawful, and each defendant has ratified and approved the acts of each of the remaining
10 defendants.

11 **JURISDICTION AND VENUE**

12 9. Jurisdiction is proper in the Superior Court of the State of California for the County
13 of Los Angeles pursuant to California Code of Civil Procedure section 410.10 *et seq.* since at least
14 some of the obligations, liabilities, and breaches complained of herein arose or occurred in the
15 County of Los Angeles. Moreover, each defendant either owns, maintains offices, transacts
16 business, has an agent or agents within the County of Los Angeles, or otherwise is found within
17 the County of Los Angeles and each defendant is within the jurisdiction of this Court for purpose
18 of service of process.

19 10. Venue as to each of the defendants is proper in this judicial district pursuant to
20 California Code of Civil Procedure sections 395(a) and 395.5 since at least some of the
21 obligations, liabilities, and breaches complained of herein arose or occurred in the County of Los
22 Angeles. Each of the defendants either owns, maintains offices, transacts business, has an agent or
23 agents within the County of Los Angeles, or otherwise is found within the County of Los Angeles
24 and each of the defendants is within the jurisdiction of this Court for purpose of service of process.

25 **FACTUAL BACKGROUND**

26 11. As it pertains to his employment with Marvel, from February 2021 to March 2024,
27 DeMayo worked on the hit series *X-Men '97* (the "Series"), acting as Executive Producer,
28

1 Showrunner, and Head Writer for the Series. From May 2022 to September 2022, DeMayo
2 simultaneously worked on Marvel's live-action feature film *Blade*.

3 12. On or about March 5, 2024, Marvel terminated DeMayo's employment. DeMayo,
4 accused of misconduct, was never provided a full and fair investigation prior to discharge. The
5 Company stated that DeMayo would retain his bonus and writing credits only if he executed a
6 settlement and release agreement (the "Agreement") whereby the Company compelled his silence
7 and exculpated itself from liability.

8 13. Just three days after his termination and receipt of the Agreement, Marvel threatened
9 to remove DeMayo's credits less his immediate signature. Under duress, DeMayo capitulated.

10 14. Among other terms, the Agreement contains the following non-disparagement
11 provision (the "Non-Disparagement Provision"):

12 Lender [Marvel] and Artist [DeMayo] hereby agree to seek the prior approval of
13 Marvel on the substance of any press release, news story, announcement,
14 publicity, or comments to the press relating to the change of relationship between
15 the Parties in connection with this Settlement Agreement, the DeMayo
16 Agreements, any of Artist's services to Marvel (including Artist's working
17 relationships with anyone Artist knows to be a current or former employee or
18 representative of Marvel or its affiliated companies), the Series, or the early
19 termination of the DeMayo Agreements. Once the initial mutually approved press
20 release is issued, Lender and Artist can refer such requests to the initial press
21 release without seeking approval. Further, Lender, Artist, and Marvel hereby
22 agree that the Parties will mutually agree in advance on the date of issuance of
23 any press release, news story, announcement, or publicity relating to the change
24 of relationship between the Parties in connection with this Settlement Agreement,
25 the DeMayo Agreements, or the early termination of the DeMayo Agreements.
26 Lender and Artist shall make no disparaging or derogatory statements or remarks
27 concerning the Series or Marvel or its affiliated companies, anyone they know to
28 be current or former employees or representatives of Marvel or its affiliated
companies in a manner that could reasonably be expected to cause reputational
injury to Marvel or its affiliated companies.

15 15. This provision, however, runs afoul of Cal. Gov't Code § 12964.5(b)(1) to the extent
16 it has the purpose or effect of denying DeMayo, an employee of Marvel, the right to disclose
17 information about unlawful acts in the workplace. Cal. Gov't Code § 12964.5(b)(1)(A) provides:

18 It is an unlawful employment practice for an employer or former employer to include
19 in any agreement related to an employee's separation from employment any provision
20 that prohibits the disclosure of information about unlawful acts in the workplace.

1 16. Cal Gov't Code § 12964.5(b)(1)(B) similarly provides:

2 A nondisparagement or other contractual provision that restricts an employee's ability
3 to disclose information related to conditions in the workplace shall include, in
4 substantial form, the following language: "Nothing in this agreement prevents you
5 from discussing or disclosing information about unlawful acts in the workplace, such
6 as harassment or discrimination or any other conduct that you have reason to believe
7 is unlawful."

8 17. Cal Gov't Code § 12964.5(b)(1)(4) also states:

9 An employer offering an employee or former employee an agreement related to that
10 employee's separation from employment as provided in this subdivision shall notify
11 the employee that the employee has a right to consult an attorney regarding the
12 agreement and shall provide the employee with a reasonable time period of not less
13 than five business days in which to do so. An employee may sign such an agreement
14 prior to the end of the reasonable time period as long as the employee's decision to
15 accept such shortening of time is knowing and voluntary and is not induced by the
16 employer through fraud, misrepresentation, or a threat to withdraw or alter the offer
17 prior to the expiration of the reasonable time period, or by providing different terms
18 to employees who sign such an agreement prior to the expiration of such time period.

19 18. Absent Marvel's prior approval, the Non-Disparagement Provision plainly prohibits
20 the disclosure of *any* information related to DeMayo's employment. This includes, without
21 limitation, the disclosure of information regarding any unlawful acts DeMayo experienced and/or
22 witnessed in the workplace.

23 19. Given its sweeping function, the Non-Disparagement Provision must contain, in
24 substantial form, the language provided in Cal Gov't Code § 12964.5(b)(1)(B). It does not.
25 Accordingly, this provision is against public policy and unenforceable. Indeed, Cal. Gov't Code §
26 12964.5(b)(2) unequivocally states that "[a]ny provision in violation of paragraph (1) is against
27 public policy and shall be unenforceable."

28 20. Nevertheless, Marvel, and its ensemble of employment attorneys, coerced DeMayo to
sign a provision that they knew to be unlawful. More still, DeMayo was not afforded a "reasonable
time period" during which to consider the Agreement and Non-Disparagement Provision therein.
Quite the opposite, DeMayo was forced to sign the Agreement or risk relinquishing his rightfully-
earned credits and bonus compensation. Even worse, Marvel and its affiliates continue to willfully
exploit this illegal provision as a means to silence DeMayo. Most recently, Marvel barred DeMayo

1 from attending the 76th Primetime Creative Arts Emmys where he is nominated for his work on the
2 Series. This action necessarily follows.

3 **FIRST CAUSE OF ACTION**
4 **DECLARATORY RELIEF**
5 **(Against All Defendants)**

6 21. Plaintiff incorporates herein and realleges the allegations in Paragraphs 1 through 20,
7 inclusive, as if set forth fully herein.

8 22. Under California Code of Civil Procedure section 1060 *et seq.*, this Court may
9 declare rights, status, and other legal relations whether or not further relief is or could be claimed.

10 23. An actual controversy exists between DeMayo, on the one hand, and Marvel, on the
11 other hand, in that DeMayo contends that the Non-Disparagement Provision is illegal, invalid, and
12 unenforceable. On information and belief, Marvel contends that this provision is lawful and
13 enforceable.

14 24. A judicial declaration is necessary and appropriate at this time as the parties are in a
15 fundamental disagreement about the legality and enforceability of the Non-Disparagement
16 Provision.

17 25. DeMayo seeks a judicial declaration that the Non-Disparagement Provision is illegal,
18 invalid, and unenforceable, or otherwise setting forth the parties' rights and obligations with respect
19 thereto.

20 **PRAYER FOR RELIEF**

21 WHEREFORE, Plaintiff prays for relief against all Defendants as follows:

- 22 1. For declaratory judgment on the first cause of action as herein stated;
23 2. For costs of suit herein; and
24 3. For such other and further relief as the court may deem just and proper.

25 Dated: September 3, 2024

LINER FREEDMAN TAITELMAN + COOLEY, LLP

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27 By: 

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